

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 14, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel (arriving at 7:35 via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Dr. Aldrich, agenda item #20 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Roybal and Mr. Johnson, agenda item #28(a) was removed from the Consent Agenda. Upon request by Mr. Segrave, and pursuant to support received by Dr. Aldrich and Mr. Johnson, agenda item #28(d) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 28, 2022. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on March 3, 2022. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) of the City of Cheyenne, Wyoming, to Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses, amending the Permissibility of Various Uses. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4417)

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) to create a Common Landscaping Plan and definition of Development Footprint. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to postpone to March 28, 2022, seconded by Mr. Segrave. Charles Bloom, Director of Planning and Development, advised discussions had occurred with individuals that had concerns and they would like to prepare amendments to address those concerns. Mr. Bloom noted there will likely be an additional postponement requested. Motion to postpone carried. Voting “yes” – all members of the governing body present.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Southwest Drive, south of I-80. Mr. Cook moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4418)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU Mixed Use to AG Agricultural for land located east of Southwest Drive, south of I-80. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4419)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to HI Heavy Industrial for land located north of Campstool Road, west of Progress Circle. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4420)

ORDINANCE –3rd READING – Creating a new Section 9.08.120, Malicious Harassment Based on Race, Color, Religion, Ancestry, Sex, Sexual Orientation, Gender Identity and Expression, National Origin, or Disability, or Political Affiliation of Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Mayor Collins announced there would be a 3-minute time limit for speakers. Speaking in opposition of the ordinance were: Bob Wilson, Tom Perea, Steve Milliad, John Romero Martinez and Lynn Hutchings. Topics discussed included: existing statutes, ordinances and policies that address bullying, harassment and violence; potential of ordinance being harmful towards individuals with opposing beliefs and being used as a wedge; confusion and challenges relating to the ordinance; biblical beliefs; how reporting offences to the Police Department will be handled; belief that Cheyenne is not in need of the ordinance; the need for the community to come together to address malicious harassment issues without an ordinance and civil rights. Speaking in support of the ordinance were: Amber Leyba and Dale Steenbergen, Greater Cheyenne Chamber of Commerce, James Peebles, Dr. Larry Meuli, and Sarah Burlingame, Director of Wyoming Equality. Topics discussed included: Governing Body support for the ordinance; ordinance importance relating to economic development; anti-lynching senate bill; issues in Ukraine; importance of ordinance to protect children and military lives; existing harassment and discrimination in the community; city’s poor economic development ranking, and the ordinance contributing to everyone feeling safe and supported. Additional comments were made related to supporting the spirit of the ordinance but opposition to the way the ordinance is written. Dr. Aldrich read a statement related to a newspaper editorial and apologized for misspeaking. Reporting for Committee of the Whole, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich voting “no”. (#4421)

ORDINANCE –3rd READING – Amending various sections of Chapter 12.20, Cemeteries, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne pertaining to Cemetery fees. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. (#4422)

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) repealing UDC 5.4.7, UU – Urban Use Overlay District, and creating UDC 5.6.9, UU – Urban Use Overlay District. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public District to CB Community Business for land located southwest of and adjacent to the intersection of Cleveland Avenue and U.S. 30. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located southeast of the intersection of College Drive and Charles Street – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Creating a new Section 9.01.010, Definitions of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Johnson)

RESOLUTION – Adopting a fee schedule for Planning and Development projects. (Postponed from February 28, 2022). Mr. White moved to adopt, seconded by Mr. Johnson. Mr. White moved to amend by substitute dated March 4, 2022, seconded by Mr. Johnson. Charles Bloom, Director of Planning and Development, provided information on the proposed substitute which includes: removal of the appraisal cost fee from the street/alley vacation by ordinance application, \$2,500 limit for preliminary and final plat applications, \$5,200 limit for expedited plat applications which is the sum of the preliminary and final plat applications plus a \$200 fee and requirement for staff review of the fee schedule every 5 years. Mr. Bloom noted he has received supportive feedback related to the proposed amendment. Upon inquiry, Mr. Bloom advised the last time the fee schedule was reviewed was October 25, 1993. Appreciation was expressed to Mr. Bloom and his staff for review of the fee schedule. Motion to amend by substitute carried. Voting “yes”– all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#6213)

[CA] RESOLUTION – To authorize the application for the continuation grant in the amount of \$318,375.00 from the Corporation for National and Community Service for the City of Cheyenne Office of Youth Alternatives Foster Grandparent Program. Motion (per Consent Agenda) carried. (#6214)

RESOLUTION – Permitting the possession of open containers within the Downtown District Boundaries for the ‘Tales and Ales’ Pub Crawl to be held on April 2, 2022. Domenic Bravo, President and CEO of Visit Cheyenne and the Cheyenne Downtown Development Authority, provided information on the event which involves open containers from establishments to trolleys which requires the resolution. Mr. Cook moved to adopt, seconded by Mr. Roybal. Concern was expressed related to the annual open container period including the DDA boundaries and how the open container period is managed. Upon inquiry, Mr. Bravo advised all 4 trolleys will be utilized for the event, approximately 50 tickets have been sold to date and the event will be held from 3-6 p.m. on April 2, 2022. Motion carried. Voting “yes” - all members of the governing body present. (#6215)

[CA] RESOLUTION – Renaming Ernste Drive to Richard Martin Drive. Motion (per Consent Agenda) carried. (#6216)

[CA] RESOLUTION – Certifying Planning Commission action amending the Cheyenne Area Future Land Use Plan & Transportation Map of PlanCheyenne Plan to change the land use category from open space and parks to Community Business for an area of land located southwest of the intersection of Cleveland Ave and U.S. 30, correct land use categories of lands throughout the City inadvertently applied with previous map adoption, modify roadway designations of specific roads that inadvertently applied with previous map adoption, and modify roadway designations in accordance with previously approved plans. Motion (per Consent Agenda) carried. (#6617)

[CA] RESOLUTION – Uncommitting \$329,630.00 in General Fund Reserves approved to be used for the purchase of the former Hitching Post, Lot 1, Block 1, P.A.S. Subdivision by the City of Cheyenne Governing Body on July 22, 2019 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Olivet Cemetery, 4th Filing, a replat of a portion of Olivet Cemetery, 3rd Filing and plat of a portion of the southeast quarter of the southeast quarter of Section 30, Township 14 North, Range 66 West, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Pershing Boulevard and Airport Parkway) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Rocking A at Sweetgrass, a subdivision of a replat of all of Lots 100 & 200, Block 15, Inclusive, Sweetgrass, 6th Filing and all of Tract U Sweetgrass, 2nd Filing along with a $\pm$ 61,911 sqft portion of abutting unplatted lands situated in the N1/4 of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located South of East Murray Road East and adjacent to Sweetgrass Drive) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – To authorize the application for the Suicide Intervention Grant in the amount of \$73,582.00 from Cheyenne Regional Medical Center for the City of Cheyenne, Office of Youth Alternatives – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Approving water and sanitary sewer services, by outside user water and sanitary sewer services agreements, for Dean Byrne, for Lot 3, Energy Park One, Situated in the NE¼ of Section 33, Township 13 North, Range 67 West, of the 6th P.M., Laramie County, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

Agreement between the City of Cheyenne and Cheyenne Regional Air Service Focus Team (CRAFT) for Minimum Revenue Guarantee Payment (General Fund). Wendy Volk, President of the Cheyenne Regional Air Service Focus Team (CRAFT), provided information on the agreement noting the agreement should have been signed last summer, therefore, it is retroactive. She explained there was a delay with the runway project which ended up taking 4 months instead of 11 weeks, and there was no air service during this period. Ms. Volk advised 8,500 passengers have used air service since the runway project has been complete. Ms. Volk provided further information on current scheduled flights and future proposed flights. Upon inquiry, Ms. Volk explained the agreement will run through June 30, 2022 and 6th Penny funds will start being collected June 1st. Mr. White moved to approve in an amount not to exceed \$240,000.00, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. (#7483)

[CA] Professional Services Agreement between the City of Cheyenne, Fire and Rescue Department, and UC Health c/o Cheyenne Medical Specialist to provide occupational medical exams (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$50,000.00). (#7484)

Memorandum of Understanding between the City of Cheyenne and the Carbon Asset Network (CAN) establishing terms and conditions for land manager partnerships. Dale Steenbergen, President and CEO of the Greater Cheyenne Chamber of Commerce, expressed continued support for the MOU, noting it is a great opportunity for community. Mr. White moved to approve, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated March 9, 2022, seconded by Mr. Segrave. Dr. Rinne explained the substitute removes conflicting termination language, corrects typographical errors and adds greater liability to CAN specifically if the city is acting on information provided by CAN. Upon inquiry, John Robitaille, CAN, advised at this time it is hard to predict income the city may receive as they are working on creating a new commodity and it depends on how much someone may be willing to pay for a ton of carbon stored in soil, but they are hoping to get \$30/month per acre. The city would then receive 2% of the fees collected. Mr. Robitaille noted currently there are 250,000 acres in network and they will continue marketing and increasing acreage over time. Upon inquiry, Mayor Collins advised it has not been determined which city department will administer the land manager partnerships. Comments were made in support of the concept and substitute and concern was expressed for how much involvement may be required by the city with only receiving 2% of collected fees. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Further comments were made in support of the MOU with hopes the process will continue to grow, the importance of the city’s participation and preference not to duplicate efforts that have already been done in areas such as the Belvoir Ranch with water and soil testing. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. (#7485)

Agreement between the Board of Public Utilities and Polo Ranch Company regarding Quarter Circle Five subdivision well development and associated water entitlement. Mr. White moved to approve, seconded by Mr. Segrave. Comment was made that the proposed agreement doesn't contain any language that would prevent the developer from suing the city and there have been a number of lawsuits regarding the development and who is in control of the property. Upon inquiry, Mayor Collins turned over duties of the Chair to City Council president Mr. Roybal and provided information on the Polo Ranch. Mayor Collins explained in 1955 the city bought the water rights and the ranch has been purchased by another Party and it has been attempted to rescind the ownership. The property was subdivided several years ago, and several homes were given water illegally. Concern was expressed relating to the possibility of another lawsuit. Mr. Collins moved to postpone to March 28, 2022, seconded by Mr. Segrave. Motion to postpone carried. Voting "yes" – all members of the governing body present.

[CA] Contract between the City of Cheyenne, the City of Cheyenne Board of Public Utilities, and McGee, Hearne & Paiz LLP for financial and compliance auditing services for fiscal the year ending June 30, 2022 (General Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Umpire's Association to umpire and score the Recreation Division Adult Softball Leagues and Tournaments for 2022 (Recreation Programs Fund) – referred to Finance Committee.

[CA] 2022-2023 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Cheyenne Fire & Rescue Department, and Stryker, Portage, MI, for equipment maintenance services (General Fund) – referred to Finance Committee.

[CA] Development Agreement between the City of Cheyenne and Laramie County School District Number One to outline responsibilities for public infrastructure improvements relating to the Coyote Ridge Elementary School Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Sponsorship Agreement between the City of Cheyenne and HollyFrontier Cheyenne Renewable Diesel Company, LLC, to designate HollyFrontier as the presenting sponsor of the 2022 Superday, Superday Tour de Prairie and Superday 5K Walk/Run (Revenue to the City) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7405 for the Contingency and Development Agreement between the City of Cheyenne and Project Bison to perform duties as outlined in the Wyoming Business Council Business Ready Community Grant Program for a Managed Data Center Cost Reduction Grant to recoup accrued utility expenses to replace "Project Bison" with "Microsoft" throughout (WBC Managed Data Center Grant). Motion (per Consent Agenda) carried. (#7405)

[CA] Contract Modification #1 to Contract #7430 between the City of Cheyenne and Reiman Corp for the Carey Avenue Multi Use Path Project (2019-2022 1% Sales Tax, Specific Purpose Sales Tax and WYDOT TAP Grant) – referred to Finance Committee.

[CA] Consideration of Bid #S-11-22 for a contract between the City of Cheyenne and Z & Z Asphalt, for the 2022 Crack Seal #1 Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$518,477.96). (#7486)

CA] Consideration of Bid #E-14-22 for furnishing two (2) new 2022 4WD 72” front- mount mowers for the City of Cheyenne, Community Recreation & Event Department-Parks Division (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-16-22 for furnishing bituminous asphalt hot mix, tack oil, and cold mix on an annual basis for the City of Cheyenne, Street & Alley Division (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-17-22 for furnishing aggregates on an annual basis for the City of Cheyenne, Street & Alley Division (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne and MED-ENG, LLC, for the purchase of two (2) bomb suits for the City of Cheyenne, Cheyenne Police Department (U.S. Department of Homeland Security Grant) – referred to Finance Committee.

Renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk’s Office. Piper Rauzi, Poor Richard’s, provided an update on their business plan and the building at 1808 O’Neil Ave. where their retail liquor license is parked. Ms. Rauzi explained environmental testing and building cleanout has occurred at the historic property. The buildout will begin later this month which will include Phase I which will be a bar. She provided further information on the building explaining new garage doors have been installed through a DDA grant and it took a long time to get the doors in. As the first allowed year period for parking the license is coming to an end, they would like to request to park the license for another year but expect the business to open in the next 4-5 months. Upon inquiry, Ms. Rauzi explained the business remodel will involve 2 phases – Phase I will be opening the front of the building as a bar and Phase II will be involving the back part of the building to include a concert venue. She noted food will also be served in some capacity. Comments were made related to concern of a retail liquor license being in a parked status for 2 years and not collecting any sales tax dollars when there are so many establishments seeking that type of license. Mr. White moved to approve, seconded by Dr. Aldrich. Mr. White moved to divide the question to consider separate action on the application for renewal of the retail liquor license for Poor Richard’s, seconded by Dr. Aldrich. Motion failed. Voting “yes” – Dr. Aldrich, Mr. Cook, Mr. Laybourn and Mr. White. Voting “no” - Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave. Mr. White moved to divide the question to consider separate action on the establishments which have not provided TIPS lists during routine compliance checks. These establishments include: Eagle’s Nest; Big D Oil #29; Vino’s Wine & Spirits; Accomplice Beer Co.; The Plains Hotel; Redwood Lounge and Package Liquors; China Buffet; Four Winds, Inc. and Peppermill Bar & Liquor,

seconded by Mr. Cook. Motion failed. Voting “yes” - Dr. Aldrich and Mr. Laybourn. Voting “no” – Mayor Collins, Mr. Esquibel, Mr. Cook, Mr. Johnson, Dr. Rinne, Mr. Roybal, Mr. Segrave and Mr. White. Comment was made relating to non-compliance of certain establishment concerning TIPS training all of which have become compliant since the Finance Committee meeting. The request was expressed that next year all establishments be able to provide TIPS training information when it is first requested during Police Department compliance checks. Further comment was made relating to how liquor licenses have been issued over the years and that some establishments initially issued retail licenses may be able to utilize bar and grill or restaurant liquor licenses and how it would be economically beneficial to be able to review these scenarios. Main Motion carried. Voting “yes” – all members of the governing body. [Clerk’s note: Mr. Esquibel joined the meeting via Zoom at 7:35 p.m. during discussion of this item]

Transfer of ownership and location of retail liquor license application filed with the City Clerk’s Office for Dillon Companies, LLC, a Kansas limited liability company d/b/a King Soopers, 3702 Dell Range Blvd., Cheyenne, Wyoming (license currently held by Avanti, Inc., d/b/a Dell Range Liquor, 3806 Dell Range Blvd. #4, Cheyenne, Wyoming). Mr. White advised there was no recommendation on the item from Finance Committee. Teresa Dietz, Adult Beverage Specialist, King Soopers, explained that along with extending their existing space for the package liquor store, they will be moving the grocery pick up location and will be able to increase pick up orders for the community. She noted all liquor store sales will take place in the designated space which will also include some groceries. Justin Flohr, Store Manager of Cheyenne King Soopers, expressed appreciation for consideration of the license transfer and noted the transfer will allow for the possibility of career advancements for store associates. Mr. White moved to approve, seconded by Mr. Johnson. Comments were made on the following topics: concern with alcohol sales in grocery stores; high demand for retail liquor licenses; the perception that the King Soopers business isn’t in dire need of the license; other similar businesses that have received retail liquor licenses locally; lack of available liquor licenses at city and state levels; economic need for different business types such as a restaurant or unique bar to hold a retail liquor license; history of license as originally issued to Avanti’s for a small specialty wines package store and some citizen support for being able to purchase alcohol at a grocery store. Upon inquiry, City Attorney Stefanie Boster upon inquiry advised the governing body isn’t bound by precedence in their decision to approve or deny the transfer. Ms. Boster referred to case law and state statutes, noting certain guidelines must be followed and evidence should be considered when they are reviewing the transfer. Further comments were made regarding liquor sales in grocery/convenience stores and economic needs and growth. Upon inquiry, Ms. Boster explained that since the renewal was approved for Dell Range Liquor, if the transfer isn’t approved, the license will remain with Dell Range Liquor. It was further noted that there likely won’t be many businesses that will be able to purchase a license at market rate. Motion failed. Voting “yes” – Mr. Cook, Mr. Johnson, Mr. Laybourn and Mr. Segrave. Voting “no” – Dr. Aldrich, Mr. Esquibel, Dr. Rinne, Mr. Roybal and Mr. White. City Clerk Kris Jones noted for the record that she received a text at 7:35 p.m. that Mr. Esquibel had joined the meeting via Zoom during liquor license renewals discussion. Upon inquiry, Ms. Boster explained pursuant to Roberts Rule of Order, a member can arrive late, and she believes Mr. Esquibel’s vote is appropriate.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held March 28, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for Prime Realty LLC d/b/a Prime Realty, 1601 Central Avenue, Cheyenne, Wyoming (license currently held by Dillinger's, LLC d/b/a Dillinger's, 1601 Central Ave., Cheyenne, Wyoming).

Announcement was made of a Public Hearing to be held March 28, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for Wyoming Horse Racing LLC d/b/a Horse Palace, 1601 Central Avenue, Cheyenne, Wyoming (license held by Prime Realty LLC d/b/a Prime Realty, 1601 Central Avenue, Cheyenne, Wyoming).

Announcement of a Public Hearing to be held March 28, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk's Office for Osterfoss Living Trust Dated May 20, 2020 d/b/a Nagel-Warren Mansion, LLC, 222 E. 17th St., Cheyenne, Wyoming.

Under other business:

Jim Ridgeway expressed concern relating to the city's surplus sale of Cheyenne Police Department evidence seized firearms requirements. TJ Bartlett, Purchasing Manager, explained he had spoken to Mr. Ridgeway and provided information on the surplus sale noting 2 bids are currently being solicited for evidence seized firearms. He advised it is the Police Department's request to award the bid to someone residing more than 100 miles away from Cheyenne and also to one person submitting the highest responsive bid for all firearms. Mayor Collins noted the bid will come before the Governing Body for approval. Mr. Bartlett noted he will have further discussions with the Police Department and that there is time to amend process if needed.

Judi Just commented on the city's consideration of going to a self-insured insurance plan and explained a situation previously when the city was self-insured and suffered great financial loss due to the plan. She provided information on recent legislative bills that if passed, could have negatively affected self-insured plans.

Mr. White noted the motion to adopt the following Resolution - Authorizing the Mayor and the City Clerk to sign a Final Plat for Sweetgrass, 9th Filing, a Replat of all of Lot 1, Block 4, Sweetgrass, 1st Filing situated in the N1/2 of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of East Murray Drive west and adjacent to Sweetgrass Drive), failed at the February 28, 2022 City Council meeting. Having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, Mr. White moved to reconsider the vote taken on the resolution, seconded by Dr. Rinne. Casey Palma, Palma Land Planning, agent for the owner, advised information on the development was distributed to members of the governing body. Mr. White explained that following subsequent meetings with the agent

and developers of the project, his concerns regarding parking and density of the project have been alleviated and requested support for the motion to reconsider. Mr. White further explained that he is no longer concerned about parking and believes it will be sufficient. Comment was made that there has been no additional information since the final vote was taken, the area remains limited, the original plan had an acre of open space and that this plan has very little open space. Mr. Palma, upon inquiry, advised that code would require 174 parking spaces and 68 bike parking spaces and that the plan has been increased from what code would require. He noted the units will be available at current market rate. Comments were made that following a tour of the property, the project is something that can be compared to other developments of this nature in the city and to take into consideration the entire project, open space and park land involved and that development projects are essentially to make money for the developer. Motion to reconsider carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Dr. Rinne moved to postpone for 2 weeks, seconded by Laybourn. Dr. Rinne explained that historically when considering a reconsideration of an agenda item, it has been customary to postpone the item to allow for interested parties to become aware and have an opportunity to participate in the discussion. It was noted that this item has had 5 public hearings and those who have wanted to comment have had the opportunity to do so. Motion to postpone failed. Voting “no” – Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Segrave and Mr. White. Voting “yes” – Dr. Aldrich, Mayor Collins, Mr. Laybourn, Dr. Rinne and Mr. Roybal. Upon inquiry from Mayor Collins, City Clerk Kris Jones read the Resolution entitlement into the record. Mr. Palma provided clarification from a previous discussion on open space and noted there is a private park with amenities. Upon inquiry, James Powers, representative of the applicant and realtor with Caldwell Banker, advised the developer is local and expressed appreciation for reconsidering the item. Mr. Powers further noted that Summit Management sets a precedent for developers, the city has put together an affordable task force for 3,000 housing units for short term rentals, rents are climbing and will continue to do so and that this project will benefit the community. He advised the proposal is a reduction of 30% in density and that he has worked with city staff to bring a project forward that meets approval. It was noted the developer is not the original family, that the governing body is not opposed to growth, but they do want quality growth. Concern was raised on adequate parking for the project. Mr. Powers provided examples of previous developments such as Carter Cottages with a less acceptable parking ratio. He advised that the property owner is participating in and supports the project. Chris Lovas, Lovas Engineering, advised the applicant has invested in the engineering plans which allows them to work with BOPU and city engineering staff to ensure the project’s success from an engineering standpoint. Additional comment was made that market rate for the proposed development units may not be affordable and caution was raised regarding the housing shortage and affordable housing. Mr. Palma, upon inquiry, confirmed that proposed parking and open space meets current UDC requirements. It was noted that if the development wasn’t in a PUD, it would have been approved administratively. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”

Dr. Aldrich advised there will be a City Council Ward III Council and Coffee event on Saturday, March 19th, from 9-11 a.m. at Dazbog Coffee (3911 E. Pershing Blvd.)

Mr. Esquibel apologized for failing to notify members of the governing body of his late arrival.

Mayor Collins requested the Governing Body meet in executive session to discuss litigation matters and a proposed facility purchase. Mr. Roybal moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(iii)(vii)(x), seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present. Mayor Collins announced members would meet in executive session, not open to the public; requested the City Attorney, City Clerk, City Treasurer and Chief of Staff be in attendance and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. Mayor Collins further advised that the following staff members would be present in executive session respective to topics relating to their departments/divisions: Compliance Director, Public Works Director, Transit Director, Fire Chief and the Fire Marshal. (Clerk’s Note: executive session convened at 8:47 p.m.).

Following closure of the executive session, Mayor Collins reconvened the regular meeting at 9:48 p.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:48 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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